Angier Citizens' Response to Chief Thompson's and Captain Helms' Flock Statements - Sourced

Statement 1: Chief Thompson, Flock "captures an image of a vehicle, including the rear license plate" and "only provides a timestamp, a location, image of a vehicle, and license plate number."

Flock's cameras record far more than a plate, a time and a place. Flock's own sales letter describes a "Vehicle Fingerprint" that identifies a car's color, make and objects like bumper stickers, with no plate needed. Its software also detects people, and its FreeForm search finds things like "man in blue shirt and cowboy hat." The mayor herself listed bumper stickers as searchable later in the same meeting.

Sources

- https://sussexcountyva.gov/department/sheriffs-department/flock-safety/
- https://www.flocksafety.com/products/flock-freeform
- https://www.wired.com/story/hackers-flock-camera-data-shows-how-system-works/

Statement 2: Chief Thompson, "North Carolina law permits LPR data to be retained for as many as 90 days. We're one-third of that."

True, but 30 days is four times what Flock itself now recommends. G.S. 20-183.32 caps plate data at 90 days, though a sworn preservation request or a warrant can extend it. Flock moved its recommended default to 7 days in August 2026, and the SBI memo the chief cited calls retention shorter than the legal maximum "a particularly good agency practice."

Sources

- https://www.ncleg.gov/EnactedLegislation/Statutes/HTML/BySection/Chapter_20/GS_20-183.32.html
- https://www.flocksafety.com/blog/flock-guardrails-address-lpr-privacy-concerns-and-police-transparency
- https://www.documentcloud.org/documents/28674881-reported-by-annie-dance-best-practices-for-law-enforcement-alpr-programs-in-north-carolina-ncsbi-9-22-26/

Statement 3: Chief Thompson, "Data is automatically deleted from the system at the conclusion of the established retention period unless information has been preserved."

Angier has no way to verify that, and Flock's own contract hedges on it. Flock promises only "commercially reasonable efforts" to delete and says data "may be temporarily retained in Flock backups." Its terms also give Flock an "irrevocable, perpetual" license to the data, and Captain Helms confirmed the search audit logs are "archived forever."

Sources

- https://www.flocksafety.com/legal/customer-infosec-addendum
- https://www.flocksafety.com/legal/terms-and-conditions-eula

Statement 4: Captain Helms, 30 days is needed because "it may be three or four days from the time a officer takes a report before it makes it to an investigator."

A three- or four-day lag fits easily inside a 7-day window. Flock's own data shows "over 90% of searches without a full plate are done within a week." For slower cases, NC law already lets the department preserve specific data with a sworn request. Maine, Virginia, Washington and Connecticut cap retention at 21 days.

Sources

- https://www.flocksafety.com/blog/flock-guardrails-address-lpr-privacy-concerns-and-police-transparency
- https://www.ncsl.org/technology-and-communication/automated-license-plate-readers-state-statutes

Statement 5: Chief Thompson, Flock is "not recommending us to reduce it to seven days… they've added seven days as a radio button."

Flock does recommend 7 days, in writing. On Aug 13, 2026, Flock's CEO wrote: "Today, we are updating our recommendation and default to a 7-day retention." The new default only applies to new customers, which is why Angier still sits at 30 days.

Sources

- https://www.flocksafety.com/blog/flock-guardrails-address-lpr-privacy-concerns-and-police-transparency

Statement 6: Chief Thompson, "The information is ours. It's nobody else's, it's ours. We're in control of what is in our system."

The town owns the data on paper, but Flock holds a permanent license to use it, and the town lost track of who had access. Flock's terms grant it an "irrevocable, perpetual, worldwide license" to customer data, which the ACLU notes survives a canceled contract. The mayor admitted outside agencies' access "was carried on in perpetuity."

Sources

- https://www.flocksafety.com/legal/terms-and-conditions-eula
- https://www.aclu.org/news/privacy-technology/flocks-terms-and-conditions

Statement 7: Chief Thompson, Sharing will be limited to agencies in Harnett, Wake and Johnston counties, and outside requests will need a form and a case number.

The outside-request form is a real improvement, but three counties is still dozens of agencies Angier can't control. Raleigh PD's logs show "ICE" as the reason for at least two Flock searches. Harnett County's Flock footage, including Angier's cameras, is reportedly open to every agency in the county, and NC law allows disclosure to federal agencies on written request.

Sources

- https://indyweek.com/news/what-the-flock-an-explainer-on-the-controversial-license-plate-reading-cameras-deployed-across-the-triangle/
- https://www.mydailyrecord.com/news/sheriff-detective-wells-was-not-involved-in-flock-case/article_736a2919-27cb-478d-8086-1e35d3e7183d.html
- https://www.ncleg.gov/EnactedLegislation/Statutes/HTML/BySection/Chapter_20/GS_20-183.32.html

Statement 8: Chief Thompson, "The state general statute only requires annual audits."

True, but biweekly is middle of the road, not exceptional. G.S. 20-183.31 requires annual audits reported to the chief, not to the board or the public. The SBI suggests weekly, monthly or quarterly reviews, and Erwin PD audits weekly. Captain Helms admitted that until recently "I didn't have a set timeframe."

Sources

- https://www.ncleg.gov/EnactedLegislation/Statutes/HTML/BySection/Chapter_20/GS_20-183.31.html
- https://www.documentcloud.org/documents/28674881-reported-by-annie-dance-best-practices-for-law-enforcement-alpr-programs-in-north-carolina-ncsbi-9-22-26/
- https://abc11.com/post/flock-cameras-draw-intense-debate-personal-privacy-public-safety-citizens-clash-law-enforcement-nc/19669634/

Statement 9: Chief Thompson, Flock Audit Assist automatically identifies "searches that meet specific criteria for additional reviews."

The tool exists, but it is new, it was optional, and it flags less than the mayor suggested. Flock launched Audit Assist in April 2026, and only about one in four agencies had it on by August. Flock's co-founder describes a flag as repeat searches of one plate over "more than 30 days" and says a flag "does not mean that it is definitely abuse."

Sources

- https://www.govtech.com/biz/under-scrutiny-flock-safety-debuts-automatic-auditing-tool
- https://www.adn.com/nation-world/2026/08/02/how-rogue-officers-turned-a-nationwide-camera-network-into-a-tool-for-stalking/
- https://techcrunch.com/?p=3152977

Statement 10: Chief Thompson, "Users are required to enter a valid case number… This shows information obtained is for investigation."

A case number proves a case exists, not that the search was proper, and Flock doesn't check it. Harris County, TX deputies typed "LOL" as a case number. A Mooresville officer charged in 2026 labeled his personal searches "motor vehicle infractions," and the deputy in U.S. v. Kyle logged "investigation" and still ran an unconstitutional search.

Sources

- https://www.eff.org/deeplinks/2026/09/high-crime-lmao-how-cops-are-treating-mass-surveillance-joke
- https://abc11.com/post/what-is-controversy-flock-cameras-north-carolina-police-officer-elizabeth-snowman-accused-tracking-woman/19636549/
- https://storage.courtlistener.com/recap/gov.uscourts.oknd.76981/gov.uscourts.oknd.76981.62.0.pdf

Statement 11: Chief Thompson, "Just because somebody runs somebody's license plate 28 times, that's not a criminal offense."

In North Carolina, one search without a law enforcement purpose is a crime, and so are 28. Misusing plate reader data is a Class 1 misdemeanor, and using a government computer for an unauthorized purpose is a Class H felony. A Mooresville officer was charged in 2026 after 31 personal searches, almost exactly the chief's example.

Sources

- https://www.ncleg.gov/EnactedLegislation/Statutes/HTML/BySection/Chapter_20/GS_20-183.33.html
- https://www.ncleg.gov/EnactedLegislation/Statutes/HTML/BySection/Chapter_14/GS_14-454.1.html
- https://abc11.com/post/what-is-controversy-flock-cameras-north-carolina-police-officer-elizabeth-snowman-accused-tracking-woman/19636549/

Statement 12: Chief Thompson, "We're not having any issues with our people."

There's no public report of misuse by an Angier officer, but a department only finds what it looks for. Until recently Angier had no set audit schedule, and outside agencies kept access indefinitely. Officers from other agencies can also search Angier's cameras, so "our people" aren't the only users.

Sources

- https://www.mydailyrecord.com/news/sheriff-detective-wells-was-not-involved-in-flock-case/article_736a2919-27cb-478d-8086-1e35d3e7183d.html

Statement 13: Chief Thompson, SBI recommendations "are already incorporated into the Angier Police Department's current practices," needing only "minor policy revisions."

Angier matches some SBI best practices and breaks others. The SBI says "not every employee should have unrestricted ALPR access," yet every Angier officer has full search access. It also says to cut off access as soon as it's no longer needed, while outside access here lingered "in perpetuity."

Sources

- https://www.documentcloud.org/documents/28674881-reported-by-annie-dance-best-practices-for-law-enforcement-alpr-programs-in-north-carolina-ncsbi-9-22-26/
- https://jocoreport.com/angier-weighs-tighter-rules-for-license-plate-cameras/

Statement 14: Chief Thompson, The SBI "has been called into some awkward investigations" of officer misuse.

True, and it undercuts the chief's other claims. The SBI investigated a Brunswick County lieutenant indicted on 18 counts, plus officers in Wrightsville Beach, Charlotte and next door in Harnett County. Misuse is common enough that the state had to step in.

Sources

- https://wlos.com/news/local/north-carolina-former-deputy-faces-18-charges-accused-arrested-misusing-flock-safety-cameras-system-alpr-automated-license-plate-readers-daniel-little-sbi-investigation
- https://www.wect.com/2026/09/09/sbi-charges-former-wrightsville-beach-officer-flock-camera-violation/
- https://thenationaldesk.com/news/americas-news-now/north-carolina-police-officer-arrested-charged-alleged-misuse-flock-safety-cameras-charlotte-mecklenburg-police-department-surveillance-technology-license-plate-reader
- https://www.mydailyrecord.com/news/detective-dismissed-amid-sbi-investigation-into-flock-use/article_91ca9f0c-f901-4eb9-a8d8-c7d3041980b9.html

Statement 15: Chief Thompson, "The company advised that its data storage infrastructure has not experienced any successful breach."

Narrowly true, but Flock data has been exposed in plenty of other ways. Passwords for at least 35 Flock customer accounts were stolen and offered for sale, according to Sen. Wyden. Flock left at least 60

cameras open to the internet, and hackers pulled 1.6 million images off one stolen camera. Flock's own security chief said, "I can't promise that we can't be breached."

Sources

- https://www.wyden.senate.gov/imo/media/doc/wyden_letter_to_ftc_on_flockpdf.pdf
- https://www.404media.co/flock-exposed-its-ai-powered-cameras-to-the-internet-we-tracked-ourselves/
- https://www.wired.com/story/hackers-flock-camera-data-shows-how-system-works/
- https://www.flocksafety.com/blog/flock-safety-cybersecurity-how-we-protect-customer-community-data

Statement 16: Chief Thompson, Flock "engages with independent cybersecurity firms, including Bishop Fox, to conduct ongoing security testing."

True, but "ongoing" means about once a year, and Flock paid for the test. Bishop Fox tested Flock from January to March 2026. Flock wrote the public summary itself, which reports 36 findings, 24 of them fixed.

Sources

- https://www.flocksafety.com/blog/flock-security-testing-2026-what-the-bishop-fox-penetration-test-found

Statement 17: Captain Helms, MFA is "mandatory for all users now," since "maybe the beginning of the year."

MFA became mandatory in August 2026, not at the start of the year. In November 2025, Flock confirmed to Congress that it did not require MFA. Flock's CEO wrote on Aug 13, 2026 that "at the beginning of this month, we also made multi-factor authentication (MFA) mandatory," so it was optional for the first seven months of the year.

Sources

- https://www.wyden.senate.gov/imo/media/doc/wyden_letter_to_ftc_on_flockpdf.pdf
- https://www.flocksafety.com/blog/flock-guardrails-address-lpr-privacy-concerns-and-police-transparency

Statement 18: Captain Helms, Flock uses the federal CJIS security standards.

The FBI does not certify any vendor as CJIS compliant. Flock's "CJIS ACE" seal comes from a private company, Diverse Computing. Flock claimed "full compliance" with CJIS policy in December 2024, yet that policy requires MFA, which Flock didn't require until August 2026.

Sources

- https://gbi.georgia.gov/node/5231
- https://www.globenewswire.com/news-release/2024/12/19/3000204/0/en/Flock-Safety-Announces-Full-Compliance-with-FBI-s-Newly-Released-Criminal-Justice-Information-Services-CJIS-Policy-Update.html
- https://le.fbi.gov/file-repository/cjis_security_policy_v6-0_20241227.pdf

Statement 19: Chief Thompson, "The Angier Police Department has gotten legal confirmation that no individual's constitutional rights are being violated by the Flock cameras."

No source was named, nothing is in writing, and the board's own attorney disagreed minutes later. He said it "would be too simplistic to say either way." The case that will set the rule for North Carolina, Schmidt v. City of Norfolk, is still on appeal at the Fourth Circuit, with argument set for December 2026.

Sources

- https://www.sog.unc.edu/node/375998
- https://dockets.justia.com/docket/circuit-courts/ca4/26-1227

Statement 20: Chief Thompson, "No information being obtained from this software will ever require a search warrant."

A federal court ruled the opposite five days before the meeting. On Oct 1, 2026, the court in U.S. v. Kyle held that a warrantless Flock search violated the Fourth Amendment. A Norfolk court suppressed Flock evidence in 2024, and Washington State now requires a warrant for private plate reader data. Most courts have upheld Flock so far, but "ever" is the problem.

Sources

- https://storage.courtlistener.com/recap/gov.uscourts.oknd.76981/gov.uscourts.oknd.76981.62.0.pdf
- https://www.eff.org/files/2025/09/26/comm_v_bell_va_2024_finding_reop_in_flock_scans89.pdf
- https://lawfilesext.leg.wa.gov/biennium/2025-26/Pdf/Bills/Session%20Laws/Senate/6002-S.SL.pdf

Statement 21: Chief Thompson, "That hasn't never been ruled. It does not violate anybody's rights."

It has been ruled, more than once. Courts ruled against warrantless plate reader tracking in Commonwealth v. Bell (2024) and U.S. v. Kyle (Oct 1, 2026). On Sept 28, 2026, a federal jury found a Texas sheriff's traffic-stop program built on plate reader flags violated the Fourth Amendment.

Sources

- https://www.eff.org/files/2025/09/26/comm_v_bell_va_2024_finding_reop_in_flock_scans89.pdf
- https://storage.courtlistener.com/recap/gov.uscourts.oknd.76981/gov.uscourts.oknd.76981.62.0.pdf
- https://ij.org/press-release/federal-jury-strikes-down-texas-sheriffs-surveillance-driven-traffic-stop-program/

Statement 22: Chief Thompson, If a Fourth Amendment violation were ever acknowledged, "we wouldn't have to shut them down. The state's gonna shut them down."

No such mechanism exists, and the town, not the state, would carry the liability. A constitutional ruling leads to suppressed evidence and civil rights lawsuits under 42 U.S.C. 1983 against the agency that ran the search. North Carolina's plate reader law has no shutdown trigger.

Sources

- https://www.ncleg.gov/EnactedLegislation/Statutes/HTML/ByArticle/Chapter_20/Article_3D.html